

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARTY PARKER, JR.,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. VIERA,
P.O. GIGLIO, P.O. NAPOLITANO and
SERGEANT THOMPSON

Defendants.
-----X

Index No.

Plaintiff designates
Kings County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

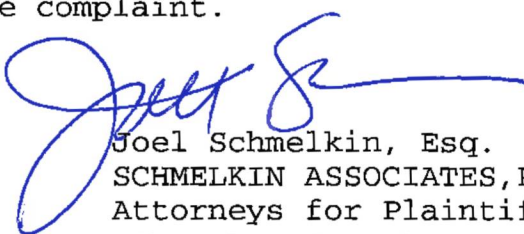
Plaintiff resides at:
133-11 227th Street
Laurelton, NY 11413

County of Queens

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 10, 2020



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, PC
Attorneys for Plaintiff
MARTY PARKER, JR.
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
P.O. Viera, c/o 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
P.O. Giglio, c/o 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
P.O. Napolitano, c/o 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213
Sergeant Thompson, c/o 77th Precinct, 127 Utica Ave, Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARTY PARKER, JR.,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. VIERA,
P.O. GIGLIO, P.O. NAPOLITANO and
SERGEANT THOMPSON,

Defendants.

-----X

Plaintiff, **MARTY PARKER, JR.**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
January 17, 2020, the plaintiff, **MARTY PARKER, JR.**, was and still
is a resident of the County of Queens, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
January 17, 2020, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
January 17, 2020, the defendant, **P.O. VIERA** (hereinafter referred
to as "**VIERA**"), was and still is a resident of the City and State
of New York.

4. That, at all times hereinafter mentioned, and on January 17, 2020, the defendant, **P.O. GIGLIO** (hereinafter referred to as "**GIGLIO**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on January 17, 2020, the defendant, **P.O. NAPOLITANO** (hereinafter referred to as "**NAPOLITANO**"), was and still is a resident of the City and State of New York.

6. That, at all times hereinafter mentioned, and on January 17, 2020, the defendant, **SERGEANT THOMPSON** (hereinafter referred to as "**THOMPSON**"), was and still is a resident of the City and State of New York.

7. That, the plaintiff, **MARTY PARKER, JR.**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 16, 2020, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **MARTY PARKER, JR.**, testified at an oral examination pursuant to the General Municipal Law on August 7, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

8. That on January 17, 2020 the plaintiff **MARTY PARKER, JR.** was a passenger in a motor vehicle driven by his cousin.

9. That they intended to proceed to his aunt's home on Hegeman Street in Brooklyn, New York.

10. They never got to his aunt's house.

11. That, the motor vehicle was pulled over by various police officers, and/or other agents, servants, and/or employees of the defendant and/or defendants.

12. That they were the only two individuals in the car, and there was no odor of marijuana or any odor of smoke in the car.

13. That the aforementioned police officers, and their agents, servants, and/or employees of the defendant and/or defendants, had driven their car with no siren and had made a U-turn.

14. That the aforementioned defendants, had gotten out of their vehicle wearing black hoodies and had approached each side of the motor vehicle in which the plaintiff **MARTY PARKER, JR.** was then and there a passenger.

15. That the aforementioned police officers , and/or other agents, servants, and/or employees of the defendant and/or defendants, had requested the driver's license and registration of the plaintiff's cousin, who was driving the motor vehicle.

16. That the aforementioned defendants had searched the motor vehicle and nothing illegal was found therein.

17. That the plaintiff **MARTY PARKER, JR.** was still in

the passenger seat, and was ordered to get out of the motor vehicle.

18. That the plaintiff **MARTY PARKER, JR.** was assaulted, battered, and beaten, for no reason, by the aforementioned police officers, and/or their agents, servants, and/or employees, which assault continued after the aforementioned defendants had searched the motor vehicle, wherein nothing illegal was found therein.

19. That the plaintiff **MARTY PARKER, JR.** did nothing to provoke the aforementioned conduct of the defendants.

20. That the plaintiff **MARTY PARKER, JR.** was assaulted, battered, and beaten, for no reason, by the aforementioned police officers, and/or their other agents, servants, and/or employees, which assault consisted of his arm being twisted, being thrown against the motor vehicle operated by the defendants; being placed in handcuffs which were too tight; falling to his knees; being kicked in the groin; as well as other acts of excessive and unjustifiable force by the defendant police officers, and/or their agents, servants, and/or employees.

21. That the plaintiff **MARTY PARKER, JR.** was taken to the 77th precinct against his will and without probable cause, by the aforementioned defendants.

22. That the plaintiff **MARTY PARKER, JR.** was not told why he was being arrested, nor told of any charges being brought against him, nor given his "Miranda rights", nor advised of any

other rights afforded to him by the United States Constitution, or the constitution of the State of New York, and/or other laws being therein effect.

23. That while at the 77th precinct the plaintiff **MARTY PARKER, JR.**, was physically searched in an aggressive manner, while placed in a holding cell.

24. That the plaintiff **MARTY PARKER, JR.** was in great pain and was suffering and had asked for medical attention, which was denied, for a long and unreasonable period of time.

25. The plaintiff **MARTY PARKER, JR.** was finally taken to Interfaith Hospital, where he was treated by medical personnel while under police custody.

26. The plaintiff **MARTY PARKER, JR.** was thereafter released from the hospital and brought to central booking by the aforementioned defendants.

27. That , the plaintiff **MARTY PARKER, JR.** was thereafter seen by a judge and released on his own recognizance.

28. That the plaintiff **MARTY PARKER, JR.** was caused to appear in criminal court on various occasions whereby all charges were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

29. That, the plaintiff, **MARTY PARKER, JR.** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 28 with the same force and effect as if

hereinafter more fully set forth at length herein.

30. That, on January 17, 2020, the plaintiff, **MARTY PARKER, JR.**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

31. That, the plaintiff, **MARTY PARKER, JR.**, was assaulted/battered without justification and without cause and without excuse.

32. That, the assault/battery took place on Ralph Avenue near Pacific Street, in the County of Kings, City and State of New York and other locations wherein the plaintiff, **MARTY PARKER, JR.** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

33. That, at all times hereinafter mentioned and on January 17, 2020, and for sometime prior thereto, defendant, **VIERA**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

34. That, at all times hereinafter mentioned and on January 17, 2020, and for sometime prior thereto, defendant, **GIGLIO**, was a New York City police officer, and/or agent servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

35. That, at all times hereinafter mentioned and on January 17, 2020, and for sometime prior thereto, defendant,

NAPOLITANO, was a New York City police officer, and/or agent servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

36. That, at all times hereinafter mentioned and on January 17, 2020, and for sometime prior thereto, defendant, **THOMPSON**, was a New York City police sergeant, and/or agent servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

37. That, the aforementioned assault and battery of the plaintiff, **MARTY PARKER, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

38. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

40. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

**(Negligent Hiring, Retention,
Training and Supervision)**

41. That, the plaintiff, **MARTY PARKER, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

43. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

44. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **VIERA** were committed due to the negligence,

recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

45. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **GIGLIO** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

46. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **NAPOLITANO** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

47. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **THOMPSON** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

48. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but

not limited to defendant, **VIERA**, who was employed by the defendant, **THE CITY**.

49. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **GIGLIO**, who was employed by the defendant, **THE CITY**.

50. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **NAPOLITANO**, who was employed by the defendant, **THE CITY**.

51. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **THOMPSON**, who was employed by the defendant, **THE CITY**.

52. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and

regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

53. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

54. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

**(False Arrest and
False Imprisonment)**

55. That the plaintiff, **MARTY PARKER, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 54 with the same force and effect as if hereinafter more fully set forth at length herein.

56. That, on January 17, 2020, the plaintiff, **MARTY PARKER, JR.**, was caused to be falsely arrested and falsely imprisoned without probable cause.

57. That, the plaintiff, **MARTY PARKER, JR.**, was arrested without an arrest warrant.

58. That, the false arrest/false imprisonment took place on Ralph Avenue near Pacific Street, in the County of Kings, City and State of New York and thereafter continuing at other

locations wherein the plaintiff, **MARTY PARKER, JR.**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

59. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARTY PARKER, JR.**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

60. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARTY PARKER, JR.**, was carried out by defendant, **VIERA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

61. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARTY PARKER, JR.**, was carried out by defendant, **GIGLIO**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

62. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARTY PARKER, JR.**, was carried out by defendant, **NAPOLITANO** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

63. That, the aforementioned false arrest and false imprisonment of the plaintiff, **MARTY PARKER, JR.**, was carried out

by defendant, **THOMPSON** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

64. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

65. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

66. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

67. The plaintiff, **MARTY PARKER, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 66, with the same force and effect as if hereinafter more fully set forth at length herein.

68. That the plaintiff, **MARTY PARKER, JR.** did not

commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

69. That at all times hereinafter mentioned, the defendant, **VIERA** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

70. That at all times hereinafter mentioned, the defendant, **GIGLIO** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

71. That at all times hereinafter mentioned, the defendant, **NAPOLITANO** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of

the defendant, **THE CITY**.

72. That at all times hereinafter mentioned, the defendant, **THOMPSON** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

73. Defendant, **VIERA**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **VIERA** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

74. Defendant, **GIGLIO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **GIGLIO** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to

take any disciplinary action whatever against any of their employees or agents.

75. Defendant, **NAPOLITANO**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **NAPOLITANO** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

76. Defendant, **THOMPSON**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **THOMPSON** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

77. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **MARTY PARKER, JR.** of the following rights, privileges

and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **MARTY PARKER, JR.** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **MARTY PARKER, JR.** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **MARTY PARKER, JR.** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

78. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

79. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

80. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

81. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional Rights was the result of the defendant, **THE**

CITY's custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

82. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

83. That the detaining of plaintiff, **MARTY PARKER, JR.** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

84. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **VIERAS's** arrest of the plaintiff **MARTY PARKER, JR.** without probable cause.

85. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **GIGLIO's** arrest of the plaintiff **MARTY PARKER, JR.** without probable cause.

86. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **NAPOLITANO's** arrest of the plaintiff **MARTY PARKER, JR.** without probable cause.

87. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **THOMPSON's** arrest of the plaintiff **MARTY PARKER, JR.** without probable cause.

88. That the deprivation of plaintiff **MARTY PARKER, JR.'s** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

89. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **VIERA's** use of excessive force.

90. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **GIGLIO's** use of excessive force.

91. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **NAPOLITANO's** use of excessive force.

92. That the deprivation of plaintiff, **MARTY PARKER, JR.'s** Constitutional rights was the result of the defendant, **THOMPSON's** use of excessive force.

93. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **MARTY PARKER, JR. .**

94. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and

negligent training of its various employees and/or police officers, the plaintiff, **MARTY PARKER, JR.** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

95. That, by reason of the foregoing, the plaintiff **MARTY PARKER, JR.** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

96. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

97. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
(Intentional Infliction of
Emotional Distress)

98. That the plaintiff, **MARTY PARKER, JR.**, repeats, reiterates, and realleges, each and every allegation as set forth

in paragraphs 1 through 97 with the same force and effect as if hereinafter more fully set forth at length herein.

99. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **MARTY PARKER, JR.**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

100. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

101. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant **THE CITY**, which is therefore responsible for their conduct.

103. The defendant **THE CITY**, were the employers of the police officer defendants, and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat*

superior.

104. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

105. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

106. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

107. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
(Negligent Infliction of
Emotional Distress)

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, which was utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **MARTY PARKER, JR.** The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights a guaranteed by the laws and Constitution of the State of New York.

110. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

111. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the defendant, **THE CITY**, which are therefore responsible for their conduct.

113. The defendant **THE CITY**, were the employers of the police officer defendants and/or other defendants, and are responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of

defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

115. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

116. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

117. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Failure to Intervene)

118. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. That the defendants that did not physically touch plaintiff, but who were present when other police officers, and/or other defendants, violated plaintiff's Constitutional Rights had

an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by police officers, and/or other agents, servants, and/or employees of the defendants.

120. Defendants failed to intervene to prevent the unlawful conduct described herein.

121. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints, and other personal injuries.

122. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York, and/or under the Constitution of the United States of America under 42 U.S.C. §1983.

123. The individual defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

124. The defendant **THE CITY**, as the employers of the co-defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of the defendants, plaintiff **MARTY PARKER, JR.** sustained personal physical injuries, including but not limited to emotional and psychological injuries.

126. That, by reason of the foregoing, the plaintiff,

MARTY PARKER, JR., was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

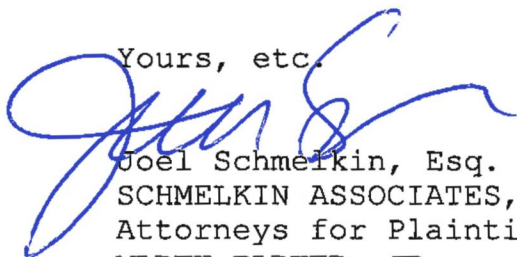
127. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

128. That, by reason of the foregoing, the plaintiff, **MARTY PARKER, JR.** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **MARTY PARKER, JR.**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth and Seventh causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
November 10, 2020

Yours, etc.

A handwritten signature in blue ink, appearing to read 'Joel Schmelkin', is written over the typed name and firm name.

Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,

MARTY PARKER, JR.

Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

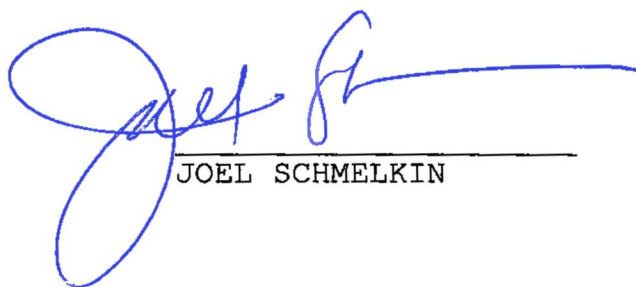
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
November 10, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARTY PARKER, JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. VIERA,
P.O. GIGLIO, P.O. NAPOLITANO and
SERGEANT THOMPSON

Defendants

SUMMONS AND VERIFIED COMPLAINT
SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone
Marty Parker, Jr.
30 VESEY STREET, 4TH FLOOR
NEW YORK, N.Y. 10007
TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:

Signature

November 6, 2020

Print Signer's Name

Service of a copy of the within

JOEL SCHMELKIN is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20 _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR
NEW YORK, N.Y. 10007